

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO H.B. 2557
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 12-2293, Arizona Revised Statutes, is amended to
3 read:

4 12-2293. Release of medical records and payment records to
5 patients and health care decision makers;
6 definitions

7 A. Except as provided in subsections B and C of this section, on
8 the written request of a patient or the patient's health care decision
9 maker for access to or copies of the patient's medical records and payment
10 records, the health care provider in possession of the MEDICAL RECORD OR
11 PAYMENT record shall provide access to or copies of the MEDICAL RECORDS OR
12 PAYMENT records to the patient or the patient's health care decision maker
13 PROMPTLY AND WITHIN NOT MORE THAN SEVEN BUSINESS DAYS.

14 B. A health care provider may deny a request for access to or
15 copies of medical records or payment records if a health professional
16 determines that either:

17 1. Access by the patient is reasonably likely to endanger the life
18 or physical safety of the patient or another person.

19 2. The MEDICAL RECORDS OR PAYMENT records make reference to a
20 person other than a health professional and access by the patient or the
21 patient's health care decision maker is reasonably likely to cause
22 substantial harm to that other person.

23 3. Access by the patient's health care decision maker is reasonably
24 likely to cause substantial harm to the patient or another person.

25 4. Access by the patient or the patient's health care decision
26 maker would reveal information obtained under a promise of confidentiality
27 with someone other than a health professional and access would be
28 reasonably likely to reveal the source of the information.

1 C. A health care provider may deny a request for access to or
2 copies of medical records or payment records if the health care provider
3 determines that either:

4 1. The information was created or obtained in the course of
5 clinical research and the patient or the patient's health care decision
6 maker agreed to the denial of access when consenting to participate in the
7 research and was informed that the right of access will be reinstated on
8 completion of the research.

9 2. A health care provider is a correctional institution or is
10 acting under the direction of a correctional institution and access by a
11 patient who is an inmate in the correctional institution would jeopardize
12 the health, safety, security, custody or rehabilitation of the patient or
13 other inmates or the safety of any officer, employee or other person at
14 the correctional institution or of a person who is responsible for
15 transporting the inmate.

16 D. If the health care provider denies a request for access to or
17 copies of the medical records or payment records, the health care provider
18 must note this determination in the patient's [MEDICAL RECORDS OR PAYMENT]
19 records and provide to the patient or the patient's health care decision
20 maker a written explanation of the reason for the denial of access. The
21 health care provider must release the medical records or payment records
22 information for which there is not a basis to deny access under subsection
23 B of this section.

24 [E. NOTWITHSTANDING ANY OTHER PROVISION OF THIS SECTION, A HEALTH
25 CARE PROVIDER SHALL RESPOND TO A REQUEST FOR MEDICAL RECORDS WITHIN THE
26 FOLLOWING TIME FRAMES:

27 1. IF THE REQUEST IS MADE BY A PATIENT OR THE PATIENT'S HEALTH CARE
28 DECISION MAKER AND IS FOR THE PURPOSE OF UPCOMING MEDICAL TREATMENT:

29 (a) WITHIN TEN BUSINESS DAY AFTER RECEIVING THE REQUEST IF THE
30 MEDICAL RECORDS ARE LESS THAN TWELVE MONTHS OLD AND ARE MAINTAINED IN THE
31 HEALTH CARE PROVIDER'S CURRENT ELECTRONIC HEALTH RECORD SYSTEM.

32 (b) WITHIN FIFTEEN BUSINESS DAYS AFTER RECEIVING THE REQUEST IF THE
33 MEDICAL RECORDS ARE TWELVE MONTHS OLD OR MORE AND ARE MAINTAINED IN THE
34 HEALTH CARE PROVIDER'S CURRENT ELECTRONIC HEALTH RECORD SYSTEM.

35 2. WITHIN THIRTY CALENDAR DAYS IF THE REQUEST IS FOR A PURPOSE
36 OTHER THAN UPCOMING MEDICAL TREATMENT, INCLUDING:

37 (a) LITIGATION.

38 (b) A REQUEST THAT IS MADE BY A PATIENT FOR MEDICAL RECORDS THAT
39 ARE NOT IDENTIFIED AS NECESSARY FOR UPCOMING MEDICAL TREATMENT, INCLUDING
40 A REQUEST FOR PERSONAL COPIES OF THE PATIENT'S MEDICAL RECORDS WHEN THE
41 MEDICAL RECORDS ARE OTHERWISE AVAILABLE THROUGH A PATIENT PORTAL.

42 (c) REQUESTS FOR THE PURPOSES OF LIFE INSURANCE OR LIFE INSURANCE
43 UNDERWRITING.

44 (d) REQUESTS FROM PAYORS, UNLESS OTHERWISE SPECIFIED IN A CONTRACT
45 BETWEEN THE PROVIDER AND THE PAYOR.

46 (e) REQUESTS FROM SCHOOLS OR EDUCATIONAL INSTITUTIONS.

47 (f) REQUESTS FOR RECORDS OF A DECEASED PATIENT.

1 (g) ANY OTHER REQUEST THAT IS NOT RELATED TO CURRENT OR UPCOMING
2 MEDICAL TREATMENT.

3 F. SUBSECTION E OF THIS SECTION DOES NOT REQUIRE A HEALTH CARE
4 PROVIDER TO CREATE OR COMPILE RECORDS THAT DO NOT OTHERWISE EXIST.]

5 [F.] [G.] For the purposes of this section~~[,]~~[:
6 1.] "Health professional" has the same meaning prescribed in section
7 32-3201.

8 [2. "UPCOMING MEDICAL TREATMENT" MEANS A SCHEDULED OR ANTICIPATED
9 HEALTH CARE SERVICE OR MEDICAL CONSULTATION FOR WHICH THE REQUESTED
10 MEDICAL RECORDS ARE REASONABLY NECESSARY TO FACILITATE DIAGNOSIS,
11 TREATMENT OR COORDINATION OF CARE.]

12 Enroll and engross to conform

13 Amend title to conform

2557JUDE.docx

03/23/2026

9:22 AM

C: SK

130ANSDGU